

25NWCV03956 25NWCV03956

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-07-29

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MARQUEZ v. TACOS EL FOGON GRILL, INC., ET AL.

CASE NO.: 25NWCV03956

HEARING: Wednesday, July
29, 2026, at 9:30 AM

Defendants TACOS EL FOGON GRILL, INC.'s and ANGEL RIZO's, as trustee of THE ALONDRA REVOCABLE LIVING TRUST DATED DECEMBER 15, 2023, Demurrer is CONTINUED to Thursday, September 3, 2026, at 9:30 AM in Dept. SE-R.

Moving party to give notice.

Background

On November 6, 2025, Plaintiff LUIS MARQUEZ ("Plaintiff") filed this action against Defendants TACOS EL FOGON GRILL, INC.; ANGEL RIZO, as trustee of THE ALONDRA REVOCABLE LIVING TRUST DATED DECEMBER 15, 2023; and DOES 1-10, inclusive ("Defendants").

Plaintiff asserts one cause of action for Violations of the Unruh Civil Rights Act.

Plaintiff alleges, "Due to architectural barriers in violation of one or more of the ADA standards for accessible design, and the

interior conditions of the Business at the Property violate the ADA and UCRA, are inaccessible, and denied Plaintiff's right and entitlement to full and equal access." (Complaint ¶ 26.)

On January 13, 2026, Defendants filed the instant Demurrer arguing that Plaintiff's Complaint fails to state facts sufficient to constitute a cause of action.

Plaintiff asks the Court to continue Defendants' Demurrer because Defendants failed to engage in a meaningful meet and confer.

Meet and Confer

On May 7, 2026, the Court issued the following ruling:

"The Court is not persuaded that Defendants' Counsel exhausted his meet and confer obligations pursuant to Code.

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This matter is CONTINUED due to Counsel's failure to comply with CCP §§ 430.41 and 435.5(a).¿¿¿

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Counsel is ORDERED to comply with CCP § 430.41 and 435.5. If, after complying with CCP §§ 430.41 and 435.5, court intervention is needed, the parties may appear and argue the merits on the continued hearing date. If the parties are unable to informally resolve the issues raised in the instant Demurrer, then the Moving Defendants must submit a signed declaration indicating such efforts pursuant to CCP § 430.41. The declaration must be electronically filed by no later than Friday, July 10, 2026." (05/07/26 M.O.)

Moving Defendants failed to comply with this Court's order.

The matter is once again continued. Moving Defendants shall submit a signed declaration by Friday, August 28, 2026.